Credibility and Reliability Coding

Overview

This document provides an overview of the coding for credibility and reliability criteria. It explains the coding structure and process in detail. Familiarize yourself with this document first, before reading the codebook. All codes, their definition, boundary conditions, and examples can be found in the codebook.

Important:

We are coding only credibility assessments, not descriptions of events retold by the court, summaries of what different parties in the court have said etc. The aim is to train a model to help us find the credibility assessments. For this, we need targeted coding, focusing only on credibility/reliability assessments.

While things like circumstances and background criteria for the parties involved are an important aspect of the overall assessment of the court, they are not in themselves credibility criteria used by the court and should thus be ignored at this stage.

Skiljaktig mening / Divergent opinion:

These are not to be coded at this stage. While important, they will come in at a later stage in the project. Ignore them for now, even if they contain credibility/reliability assessments.

Contents

1. Coding taxonomy at a glance
2. General inclusion rule
3. Document-level coding
4. Assessment-level coding
    - 4.1 Criteria
    - 4.2 Finding
    - 4.3 Person role
    - 4.4 Person ID
    - 4.5 Relevant charge
    - 4.6 Valence
    - 4.7 HR reasoning
5. Notes
6. Repeated and multiple assessments
7. Assessments spanning multiple paragraphs

1. Coding taxonomy at a glance

Level	Variable/aspect	Possible response	Type
Document	Credibility/reliability assessment present?	Present / Not present	Categorical
Assessment	Criterion	One or more criteria from substantive taxonomy	Categorical; multi-label
Assessment	Finding	Additional information about the criterion.	Categorical
Assessment	Person role	Complainant / Defendant	Categorical
Assessment	Person ID	01 / 02 / 03 / etc.	Within-document identifier
Assessment	Relevant charge	Rape / Non-rape / Both-all / Unclear	Categorical
Assessment	Valence	Positive / Negative / Mixed / Ambiguous / Irrelevant	Categorical
HR only	HR reasoning status	Own / Agreement-Adoption / Modification-Rejection / Other-Unclear	Categorical
Development/QC	Notes	Coder uncertainty, taxonomy problems, unusual cases	Optional free text

2. General inclusion rule

Code a credibility/reliability criterion when the court uses a characteristic, circumstance, or consideration as part of its assessment of a person's credibility, reliability, truthfulness, or the evidential value of their account.

The court does not need to explicitly state how the criterion affects credibility/reliability. It is sufficient that the consideration forms part of identifiable credibility/reliability reasoning, which may be established from the surrounding context.

Coding rules:

- **Code** criteria that the court explicitly evaluates or uses as part of its credibility/reliability reasoning, even without an explicit statement about their implications.
- **Do not code** when the court merely recounts events, reproduces statements, or presents evidence without using them as part of a credibility/reliability assessment.
- **Do not automatically code** every consideration mentioned near a credibility assessment. Its evaluative function must be identifiable from the context.
- **Only code the court's reasoning.** Arguments or statements by other parties qualify only when the court adopts or uses them in its assessment.

3. Document-level coding

Every completely reviewed ruling must receive a document-level code indicating whether any qualifying credibility/reliability assessment was identified.

Credibility/reliability assessment present:

- Present
- Not present

Not present means that the entire relevant ruling has been reviewed and no qualifying credibility/reliability assessment was identified. It must not be used for documents that have not yet been completely reviewed.

Exclusions:

If a ruling is not eligible for coding, record “Excluded” at the beginning of the document’s coding sheet and briefly state the reason for exclusion.

Only one exclusion entry is required per ruling. Excluded rulings should not be coded as “Not present”, since this category is reserved for eligible rulings that have been reviewed but contain no qualifying credibility/reliability assessments.

4. Assessment-level coding

For every qualifying credibility/reliability assessment, record the following information.

Each distinct criterion assessment should receive its own coding entry, including Criterion, Finding, Person role, Person ID, Relevant charge, Valence, and HR reasoning status (where applicable).

When a passage contains multiple criteria, code each criterion separately, even if they occur within the same sentence or paragraph.

4.1 Criteria

Type: Categorical

Select the credibility/reliability criteria applied by the court. A single passage may contain multiple criteria. Do not force a passage into only one criterion when the court genuinely applies several.

The individual criteria and their definitions are specified in the separate codebook.

Use Notes when you are unsure whether the criterion fits, or there is additional information that you deem important to record.

4.2 Finding

Type: Categorical

Record what the court finds concerning the criterion. These are standardized and different between criterions. The codebook contains the finding section for each of the criteria including examples.

The aim is to provide additional information about the criterion. For example for criterion *A1 — Detail / richtness of detail,* whether the court found the statement to be detailed, partially detailed, partially not detailed or not detailed.

If none of the available Finding categories fits perfectly, select the closest appropriate category and briefly explain the issue in Notes. Do not force an assessment into a category that clearly does not represent the court's finding.

4.3 Person role

Type: Categorical

Record whose account is being assessed. Choose:

- Complainant
- Defendant

4.4 Person ID

Type: Within-document identifier

This distinction is essential in rulings containing multiple complainants or defendants. It records which complainant or defendant the assessment concerns.

This should follow the order in which the complainants/defendants are named at the beginning of the document. Meaning, the first complainant mentioned becomes 01, the second becomes 02 and so on.

Do not independently invent a different numbering system!

4.5 Relevant charge

Type: Categorical

Record whether the person/assessment is connected to the rape charge or another charge in the ruling.

Choose:

- **Rape**
  When the credibility assessment concerns the rape charge. This includes when rape/negligent rape is the only charge in the ruling.

- **Non-rape**
  When the credibility assessments concerns another charged than rape. This applied only to rulings with more charges than rape/negligent rape.

- **Both/all**
  When the credibility/reliability assessment concerns more than one charge simultaneously, including at least one charge other than rape/negligent rape. This applied only to rulings with more charges than rape/negligent rape.

- **Unclear**
  When it is unclear which of the charges the assessment seems to concern. This applied only to rulings with more charges than rape/negligent rape.

4.6 Valence

Type: Categorical

Valence records the direction of the court's credibility/reliability assessment. This direction may be explicitly stated or inferred from the criterion being evaluated and its meaning within the court's reasoning.

- **Positive:**
  The assessment strengthens the credibility/reliability or evidential value of the person's account.

- **Negative:**
  The assessment weakens the credibility/reliability or evidential value of the person's account.

- **Mixed:**
  The court's assessment itself contains both positive and negative implications for credibility/reliability.

- **Ambiguous:**
  The information in the court ruling itself is genuinely ambiguous regarding the direction of the assessment.

- **Irrelevant / No effect**
  The court explicitly considers a criterion but concludes that it does not affect the credibility/reliability or evidential value of the person's account.

Coding rules:

- **Explicit evaluation:** Follow the direction expressed by the court.
- **Implicit evaluation:** When the court identifies an established credibility/reliability criterion without explicitly stating its implications, assign valence according to the criterion's generally recognized meaning in judicial credibility assessments (see, for example, NJA 2010, s. 671).
- **Context matters:** Do not automatically assign valence based on the presence or absence of a criterion when the court's reasoning indicates a different interpretation.

- **Ambiguous vs. coder uncertainty:** Use Ambiguous only when the direction genuinely cannot be established from the ruling. Record uncertainty about a coding decision in Notes.
- **Ambiguous vs. Ireelevant / No effect:** Do not confuse Irrelevant / No effect with Ambiguous. Irrelevant means the court explicitly indicates that the criterion has no effect, whereas Ambiguous means that the direction of the assessment cannot be established.

Example:

“The account was detailed, long and clear.”

→ **Positive**, even without an explicit statement that these characteristics strengthen credibility, because they are generally treated as positive indicators in judicial credibility assessments.

Important: Valence reflects the implications of the court’s assessment, not whether the account is ultimately accepted or rejected. An individual criterion may receive Positive valence even when the court’s overall credibility judgment is negative.

4.6 HR reasoning status

Type: Categorical

Credibility/reliability assessments in appellate court rulings receive an additional code describing the relationship between the HR's reasoning and the TR's reasoning.

- **Own**:
  The HR makes the assessment without referring to the TR's assessment.

- **Agreement/Adoption:**
  The HR explicitly engages with a criterion or assessment made by the TR and agrees with it.

- **Modification/Rejection:**
  The HR engages with a criterion or assessment made by the TR but modifies or rejects the TR's assessment.

- **Other/Unclear:**
  The HR's reasoning genuinely cannot be adequately represented by the three categories above.

Other/Unclear should not be selected because the coder is uncertain. Coder uncertainty should instead be explained in Notes.

5. Notes

Type: Optional free text

Notes are primarily a tool for coder uncertainty or noting special cases. **Straightforward assessments do not require a note.**

Use Notes when, for example:

- you are uncertain about a coding decision;
- the reason for your uncertainty should be discussed;
- a multiple-person or charge situation creates a coding problem;
- the relationship between finding and valence is difficult to represent;

When recording uncertainty, briefly state what you are uncertain about and why.

6. Repeated and multiple assessments

Multiple criteria in the same passage

A single passage may receive multiple credibility/reliability criteria. This is expected and should be coded when appropriate.

Repeated assessments

Code each new instance in which the court makes a credibility/reliability assessment, even if the same criterion has already appeared earlier in the ruling.

Criterion-specific coding rules

Some criteria have additional rules for determining what constitutes a separate assessment. For example, B3 (Consistency / support from other evidence) requires separate coding entries for distinct pieces of evidence evaluated by the court, while collectively evaluated witness statements count as one assessment.

Consult the codebook for the specific coding rules applicable to each criterion.

7. Assessment spanning multiple paragraphs or blocks

When encountering an assessment that spans multiple blocks, note down all blocks that the assessment contains.

An assessment may span multiple blocks when the court's evaluation of a single criterion begins in one block and continues into another. In such cases, record all blocks belonging to that assessment as one coding entry.

If different criteria are evaluated across the blocks, create separate entries for each criterion.

- **Assessment spans two or more subsequent blocks:**
  Write it as 30-32.

- **Assessment spans two more blocks with heading/footer blocks in between:**
  Write it as 30;32, where block 31 just contains a heading/footer and is thus not included.